



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00254-01-01 / Frontier Gardens, 4th Filing Final Plat
Date: October 10, 2022

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/10/2022
- Public Services Committee 10/18/2022
- Consideration 10/24/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their October 3, 2022 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- UDC-22-00254-01 / 4605, 4606, 4607, and 4608 Moran Avenue Zone Change (approved)

Attachments:

1. Resolution
2. Final Plat Map (dated 9/7/2022)
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR FRONTIER GARDENS 4TH FILING, A REPLAT OF ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF THE INTERSECTION OF DELL RANGE BOULEVARD AND MORAN AVENUE).”

WHEREAS, Vig Moran, LLC have subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Vig Moran, LLC the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Frontier Gardens 4th Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Know all persons by these presents that; WG Moran, LLC, a Wyoming Limited Liability Company, owner in fee simple of Lots 1 and 2, Block 16 and Lots 3 and 4, Block 17, Frontier Gardens, Third Filing Laramie County, Wyoming, More particularly described as follows:

Lots 1 and 2, Block 16, Frontier Gardens, Third Filing, according to the official plat filed for record on November 2, 1955 in Plat Cabinet 2, Slot 268, Records of Laramie County, Wyoming.

AND

Lots 3 and 4, Block 17, Frontier Gardens, Third Filing, according to the official plat filed for record on November 2, 1955 in Plat Cabinet 2, Slot 268, Records of Laramie County, Wyoming.

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, Lot 1, Block 1, Frontier Gardens 4th Filing, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires, and do hereby dedicate to the public the right-of-way as shown hereon.

by: David B. Newman, Member, VG Moran, LLC,
a Wyoming limited liability company.

STATE OF _____)
) ss
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____ 2022,
by David B. Newman, Member, WG Morozov, LLC, a Wyoming limited liability company.

My Commission Expires: _____
Notary Public, _____

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2022.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day
of _____, 2022.

Witness _____

ATTEST: _____

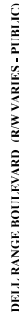
City Clerk

ATTEST:

A REPLAT OF ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 1102 WEST 18th ST. CHEFFENNA, WY. 86001 • (307) 654-7873
 756 CHELSEA ST. WHEATLAND, WY. 83091 • (307) 522-1978
www.SteilSurvey.com • info@SteilSurvey.com



- ① SET 5/8" X 24" LONG REBAR WITH 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ② FOUND 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ③ FOUND 3/8" IRON PIPE

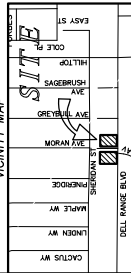
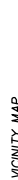
BASIS OF BEARINGS: INCOMING STATE PLANE
 COORDINATES, EAST ZONE, NAD83-2011, U. S. SURVEY FEET.
 GRID DISTANCES: COMBINATION FACTOR = 0.9999694.

ALL UNMUNICIPATED LOT CORNERS, ANGLE POINTS, AND
 ADJUTANTS OF CURVATURE, BE MONUMENTED WITH
 ALUMINUM CRYSTALINE "3/8" DIA. 5/16" ON 1/2" X 2 1/2"
 REBAR.

A PORTION OF THE LANDS CONTAINED WITHIN THE PLAT
 ARE RESERVED FOR THE STATE OF TEXAS, TO BE REVENUED
 BY THE COMMISSIONER OF LANDS, UNDER THE
 F.L.M. PANEL NO. 5602CT0092T, DATED JANUARY 17,
 2007.

THE PURPOSE OF THIS PLAT IS TO CREATE ONE LOT AND
 TWO UNMUNICIPATED LOTS.

VACATION STATEMENT
IT IS THE INTENT OF THIS REPEAT TO VACATE ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, EXISTING EASEMENTS TO REMAIN



ING TERRELL B 16-17 FRONTIER GARDENS ALTA\21404 FINAL PLAT.dwg
REVISED: 9/7/2022



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

OCTOBER 3, 2022

STAFF REPORT

FILE: UDC-22-00254-01-01: Frontier Gardens, 4th Filing Plat (Expedited Review)

REQUEST: A plat to consolidate former multifamily lots and a street into one lot (street to be vacated via this platting action).

LOCATION: North of the intersection of Dell Range Boulevard and Moran Avenue

APPLICANT: SFP-E-LLC

AGENT: Blake Widmer, EIT and Michael White, PE (Cushing Terrell)

OWNER: VIG Moran LLC (attn: Darko Vukovic)

ZONING: HR High-density Residential

PROPOSED ZONE: CB Community Business

PURPOSE: To consolidate land to allow commercial development.

PREPARED BY: Seth Lloyd, Planner II – Development



RECOMMENDED MOTION:

Move to **approve** the Frontier Gardens, 4th Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with no conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat to combine two parcels and a largely unused public street into one larger parcel for commercial development. The resulting lot would be approximately 1.3 acres.

The project was postponed at the September Planning Commission Meeting to allow the Planning Commission to acquire more information regarding the treatment of the tenants. The applicant provided added information and this documentation has been included as the final attachment. The applicant also submitted a revised map addressing all conditions from the September Staff report. This Staff report has been updated to reflect the added information provided by the applicant.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Residential	HR High-density Residential	Multi-family
North	Urban Residential	MR Medium-density Residential	Single-family residential
South	Open Space and Parks, Community Business	P Public, CB Community Business	Park, Retail, Vacant
East	Mixed-use Residential	HR	Single-family residential
West	Mixed-use Commercial	MUB, Mixed-use Business Emphasis	Commercial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

The future land use map within PlanCheyenne identifies this area as developing with a mix of residential and commercial development, and the proposed plat in this zoning district would be compatible with this objective. PlanCheyenne supports the use of existing infrastructure and

timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure and no expansion of infrastructure is necessary. This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed application vacating a street and combining properties to create one larger lot. The street could connect northward across the creek, but the street was platted in 1958 and was never built to cross the creek. It is unlikely to be deemed necessary enough to the street network to warrant the construction needed to cross the creek. One larger lot presents more options for infill development (whether commercial or residential).

The surrounding area is largely developed with commercial uses along Dell Range, although there is a small stretch of residential uses to the east of the subject property.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

Subdivisions which add land to the development are not exempt from fees, and as this project is taking land previously dedicated of right-of-way, fees are due. Fees previously paid may be credited, but fees were not charged when the original plat occurred in 1958, so no credits can be applied. Estimated fees due at plat signing: \$910.

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously developed. The creek creates a natural barrier to development of the network in this area, and despite being platted for a street connection for over 60 years, no action has been taken to actually build a street crossing the creek at this location. It appears logical to vacate this street to allow more versatility in development options.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. However, due to the nature of this application, plat-level open space is not required.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lot within this development; although some utilities may have to be modified to allow for more consolidated development.

Public Safety Fees (4.6):

Public Safety Fees will be due with building permits of new construction on the site.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A Drainage Worksheet and preliminary report was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A Traffic Worksheet and study was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes one lot. The lot is buildable in the zone district.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

Properties adjacent to this plat are zoned HR to the east and MUB to the west. CB zoning exists nearby to the south, and MR zoning exists across the creek to the north. The Creek provides a

buffer to the lower-intensity zoning to the north. The properties to the east, while residential, are already along a major thoroughfare with significant vehicle traffic. The CB-zoned property will be required to buffer to the HR-zoned property. The general commercial nature of development along Dell Range means that the redevelopment of this parcel will not create an undue influence on neighboring properties.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff recommends conditions to the plat for largely technical issues.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor technical issues with the plat and the drainage study.
2. BOPU utility locations and easements.
3. Location of proposed easements.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant, with conditions.

The area this plat is proposed in an existing residential neighborhood, with similar divisions of land throughout. The built environment is not proposed to substantively change, as two homes already exist on the subject property. The proposed plat is consistent with this development pattern.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body. **(Staff Recommendation)**
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

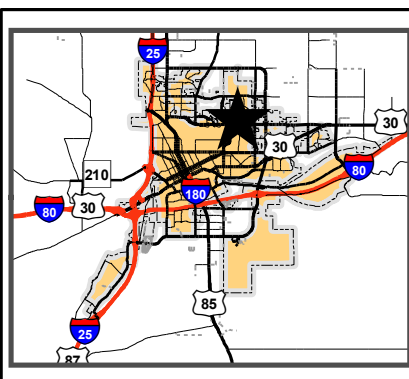
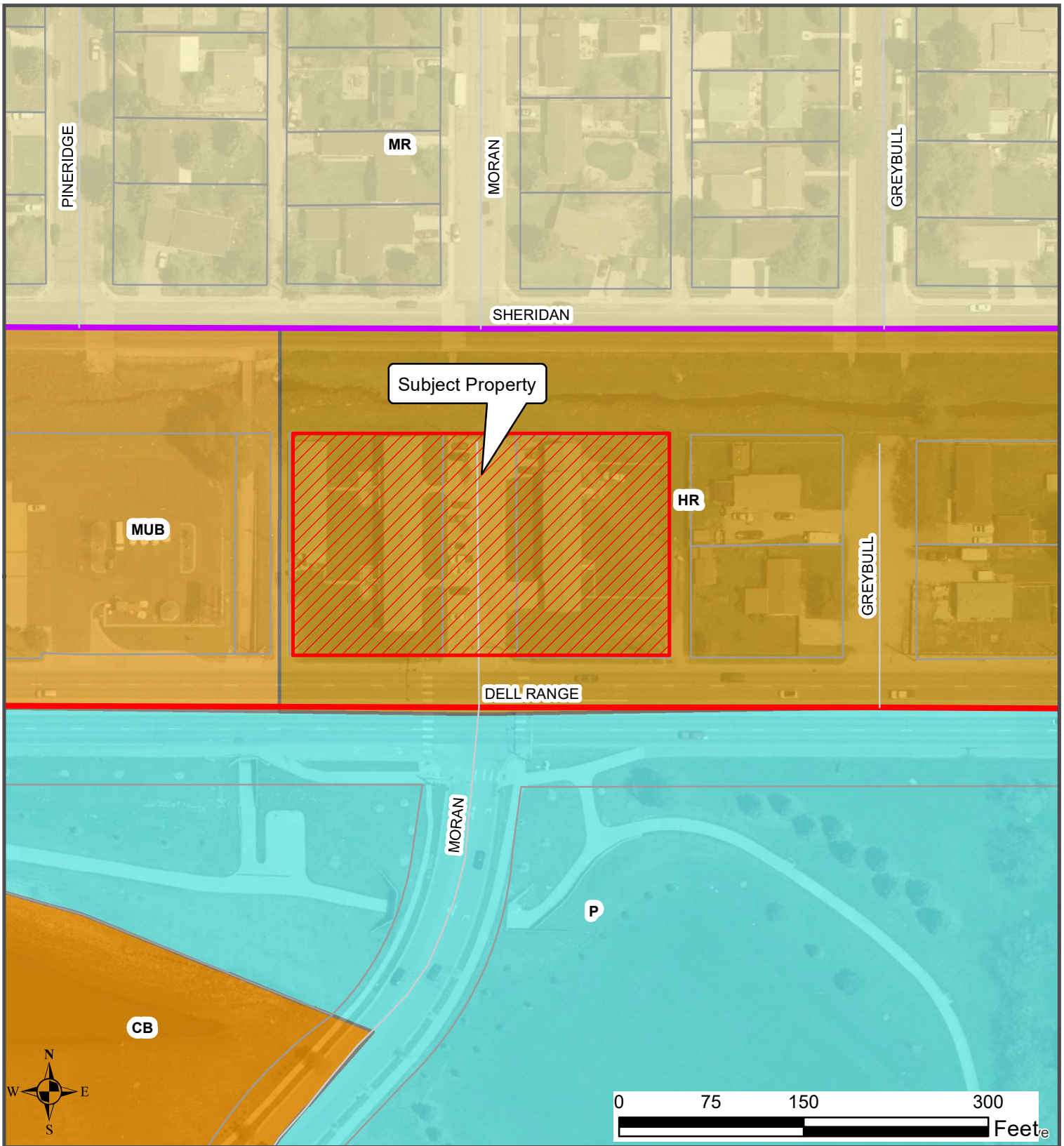
The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with no conditions.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Revised Final Plat (revision date 9/7/2022)
6. Information on tenant status (provided by applicant)

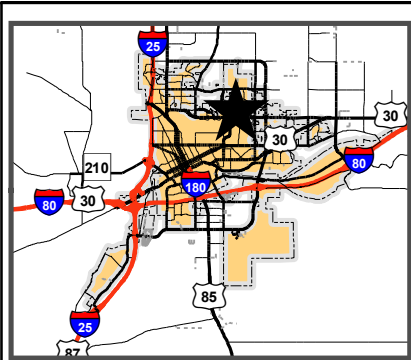
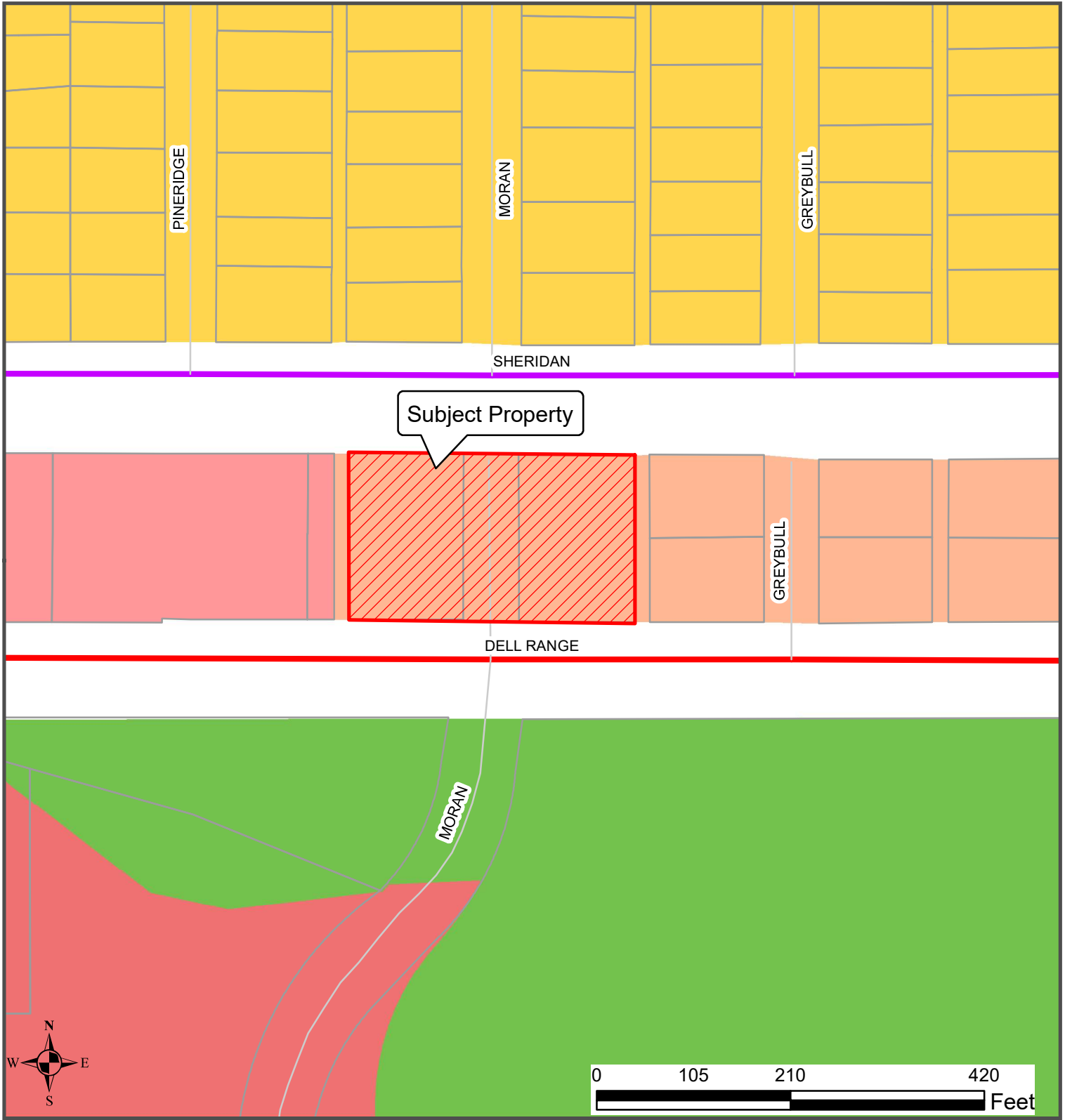


Attachment 1: Zoning Map UDC-22-00254-01

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|



Attachment 2: Land Use Map UDC-22-00254-01

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Plat - Expedited

Submission date: **29 June 2022, 4:07PM**
Receipt number: **23**
Related form version: **11**

General Information

Applicant Name:	SFP-E-LLC
Applicant Address:	P.O. Box 5350 20900 Cooley Road
Applicant City:	Bend
Applicant State:	Oregon
Applicant Zip Code:	97701
Applicant Phone:	(514) 416-5241
Applicant Email	george.r.bunting@lesschwab.com
Representative Name:	Blake Widmer, EIT and Michael White, PE
Representative Address:	303 E 17th Ave #105
Representative City:	Denver
Representative State:	Colorado
Representative Zip Code:	80203
Representative Phone:	(720) 598-9264
Representative Email:	blakewidmer@cushingterrell.com
Owner Name:	VIG Moran LLC (attn: Darko Vukovic)
Owner Address:	684 Delechant Street
Owner City:	Erie

Owner State:	Colorado
Owner Zip Code:	80516
Owner Phone:	(435) 590-9095
Owner Email:	drvukovic86@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization.pdf
Project Location (Street Address or General Location):	4606, 4608, 4605, 4607 Moran Avenue, Cheyenne, WY 82009
Assessor's Parcel ID number(s)	R0017375 and R0017363
Total Project Area	55,995 SF (1.29 Acres)
Existing Zoning	HR - High-density Residential

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	For the proposed development of this site, new easements are needed. Three easements have been proposed: a new access easement in the parking area, a new utility easement for a proposed storm line in the southwest portion of the site, and a new utility easement for a proposed hydrant. Because these new easements are being proposed, an expedited plat is required to develop this site.
Current Subdivision	Frontier Gardens, Third Filing
Lots affected by this proposal	Lots 1 and 2, Block 16 & Lots 3 and 4, Block 17
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	12/01/2021

Upload any pre-application meeting notes or summaries [PreAppMeetingSummary.pdf](#) relevant to this proposal.

Are any easements proposed to be added, modified, or **Yes** removed?

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

The proposed development for this site is exempt from the Civic Open Space Approach based on UDC 4.4.2.B. This is because the site is within one-quarter mile from an existing public open space that can sufficiently serve the development. This existing open space is known as Cahill Park and exists to the southeast of the site across Dell Range Boulevard. The open space is located less than 200' from the southeast corner of the property, and is large enough to sufficiently serve the proposed development.

Drainage Worksheet / Study

[Drainage Report - Preliminary 6.28.22.pdf](#)
[Drainage Worksheet.pdf](#)

Transportation Worksheet / Study

[Transportation Worksheet and Study.pdf](#)

Transportation Network Plan

[TNP.pdf](#)

Preliminary Plat Drawing

[Plat - Prelim.pdf](#)

Final Plat Drawing

[Plat - Final.pdf](#)

I acknowledge that final stamped and signed mylars are required to be submitted prior to scheduling for Governing Body introduction.

Signature / Certification

Applicant Signature

Name of signatory: Blake Widmer

A handwritten signature in black ink, appearing to be 'BW' followed by a stylized flourish.

[Link to signature](#)

Please enter an email address for an email receipt.

blakewidmer@cushingerrell.com

Declaration. Know all persons by these presents that; VIG Moran, LLC, a Wyoming Limited Liability Company, owner in fee simple of Lots 1 and 2, Block 16 and Lots 3 and 4, Block 17, Frontier Gardens, Third Filing Laramie County, Wyoming, More particularly described as follows:

AND

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, Lot 1, Block 1, Frontier Gardens 4th Filing, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires, and do hereby dedicate to the public the right-of-way as shown hereon.

ACKNOWLEDGEMENT

The foregoing instrument was acknowledged before me this _____ day of _____ 2022,
by David B. Newman, Member, WG Moran, LLC, a Wyoming limited liability company.

Approved by Charles Bloom, Development Director this
_____ day of _____, 2022.

Approved by Thomas Cobb, P.E., City of Cheyenne Engineer
this _____ day of _____, 2022.

CITY ACKNOWLEDGEMENT

The foregoing instrument was acknowledged before me this ____ day of _____, 2022, by Charles Bloom, City of Cheyenne Planning & Development Director and Thomas Cobb, P.E., City Engineer for the City of Cheyenne.

My Commission Expires: _____

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Stell Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

1. BASES OF DEANINGS, INCLINED STATE PLANE COORDINATES, EAST ZONE, NAD83-2011 US SURVEY FEET. GRID DISTANCES, COMBINATION FACTOR = 0.99966594.
2. ALL UNMUNUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MUNUMENTED WITH 12" CAP STAMPS CAP STAMPS SSS P.L.S. 9810' ON %24 REBAR.
3. A PORTION OF THE LOTS CONTAINED WITHIN THE BOUNDARY FALLS WITHIN 100-YEAR FLOOD SPRA R.F.M. PANEL No. 5602C10925, DATED JANUARY 17, 2007.
4. THE PURPOSE OF THIS PLAT IS TO CREATE ONE LOT AND

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF LOTS 1 AND 2, BLOCK 15 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, EXISTING EASEMENTS TO REMAIN

VICINITY MAP

MORAN AVE

DELL RANGE BLVD

SAGEBRUSH AVE

GREYHOUND AVE

HILLTOP

COLE P

EASY ST

PINEBROOK

MAPLE WY

LINDEN WY

CACTUS WY

SAGEBRUSH AVE

CHINA PL

REVISÉ: 06/07/2022

REVISÉ: 06/07/2022



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEEPPENNA, WY. 82001 c (307) 694-7875
756 GILCHRIST ST. WHEATLAND, WY. 82201 c (307) 922-9789
www.Steelsurvey.com e info@Steelsurvey.com

www.StallSupply.com info@StallSupply.com

PREPARED June 2022

CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

AN ADMINISTRATIVE REPLAT OF ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO.

FRONTIER GARDENS 4TH FILING

Know all persons by these presents that; WG Moran, LLC, a Wyoming Limited Liability Company, owner in fee simple of Lots 1 and 2, Block 16 and Lots 3 and 4, Block 17, Frontier Gardens, Third Filing Laramie County, Wyoming, More particularly described as follows:

Lots 1 and 2, Block 16, Frontier Gardens, Third Filing, according to the official plat filed for record on November 2, 1955 in Plat Cabinet 2, Slot 268, Records of Laramie County, Wyoming.

AND

Lots 3 and 4, Block 17, Frontier Gardens, Third Filing, according to the official plat filed for record on November 2, 1955 in Plat Cabinet 2, Slot 268, Records of Laramie County, Wyoming.

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, Lot 1, Block 1, Frontier Gardens 4th Filing, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires, and do hereby dedicate to the public the right-of-way as shown hereon.

by: David B. Newman, Member, VG Moran, LLC,
a Wyoming limited liability company.

STATE OF _____)
) ss
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____ 2022,
by David B. Newman, Member, WG Morozov, LLC, a Wyoming limited liability company.

My Commission Expires: _____
Notary Public, _____

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2022.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day
of _____, 2022.

Witness

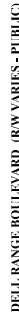
ATTEST: *Chloe Clarke*

ATTEST:

A REPLAT OF ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 1102 WEST 18th ST. CHEFFENNA, WY. 86001 • (307) 654-7873
 756 CHELSEA ST. WHEATLAND, WY. 83091 • (307) 522-1978
www.SteilSurvey.com • info@SteilSurvey.com



- ① SET ¾" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ② FOUND ¾" IRON PIPE

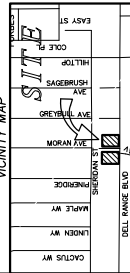
BASIS OF BEARINGS: INCOMING STATE PLANE
 COORDINATES, EAST ZONE, NAD83-2011, U. S. SURVEY FEET.
 GRID DISTANCES: COMBINATION FACTOR = 0.9999694.

ALL UNMUNICIPATED LOT CORNERS, ANGLE POINTS, AND
 ADJUTANTS OF CURVES, BEING MUNICIPIATED BY THE
 CITY OF CHICAGO, ARE TO BE MUNICIPIATED BY THE
 ALDERMAN OF CHICAGO, "333 S. 5TH" ON "N 24"
 REBAR.

A PORTION OF THE LANDS CONTAINED WITHIN THE PLAT
 BEING HEREIN SHOWN, ARE BEING HEREIN REBUILT BY THE
 FIRM, PANEL NO. 5602CT00267, DATED JANUARY 17,
 2007.

THE PURPOSE OF THIS PLAT IS TO CREATE ONE LOT AND
 TWO UNMUNICIPATED LOTS.

VACATION STATEMENT
IT IS THE INTENT OF THIS REPEAT TO VACATE ALL OF LOTS 3 AND 4, BLOCK 17 AND ALL OF LOTS 1 AND 2, BLOCK 16 AND ALL OF MORAN AVENUE ADJACENT THERETO, FRONTIER GARDENS 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, EXISTING EASEMENTS TO REMAIN



QUESTIONS

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Stelli Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ING TERRELL B 16-17 FRONTIER GARDENS ALTA\21404 FINAL PLAT.dwg
REVISED: 9/7/2022

To whom it may concern,

This letter intends to provide an update on the current tenant situation regarding the proposed Les Schwab re-development of the apartment building located at 4605 - 4608 Moran Ave.

As of Sept 12th 2022, the current status of the tenants is:

- All tenants were informed of the redevelopment in June of 2022.
- All tenants, current and previous were promised a 60 day vacation notice.
- 5 units are currently vacant due to tenants voluntarily securing other housing and moving out on their own accord.
- 2 notices to vacate have been given to us (the landlord) by tenants voluntarily who have secured other housing.
- The remaining 5 units are occupied and are on a month-to-month basis.
- All tenants who have vacated thus far have been given back their full deposit at the time of move out.
- We plan to give the remaining tenants their full deposit back on the date of move out.

We acquired the building in November 2019. Since acquisition:

- We have never raised rent on any tenants and have continued to keep the rent below market in an effort to help tenants acquire enough savings.
- We repaired about a dozen or so issues of health and hazard inherited from the previous landlord. These issues include but are not limited to sliding doors which do not open, broken windows, leaks, mold, lack of fire extinguishers, lack of properly functioning thermostats, roach infestations, etc...
- We allowed flexible lease terms.
- We were very lenient with tenants about paying late, and never collected fees for doing so.

Prior to the buildings being demolished:

- Les Schwab has agreed to let the landlord sell, recycle or repurpose any utilities or appliances. The landlord will also allow tenants to take appliances such as a refrigerator and stove free of charge if it helps them with securing new housing.

In the current state, this building in our opinion does not provide a good opportunity for residential housing. Given the age of the building and systems, rents would need to drastically be increased to justify the level of investment needed in maintaining this building as a residential building. Knowing the potential of a better use, we were able to hold off on increasing rents up with the anticipation of re-development into a better use for this location.

Please let me know if I could be of any further assistance or if I could clarify any of the points above.

Thank you,



Darko Vukovic,
Managing Member VIG Moran LLC
Phone #: +1 650 485 9634
Email: drvukovic86@gmail.com

To whom it may concern,

This letter intends to provide an update on the current tenant situation regarding the proposed Les Schwab re-development of the apartment building located at 4605 - 4608 Moran Ave.

As of Sept 12th 2022, the current status of the tenants is:

- All tenants were informed of the redevelopment in June of 2022.
- All tenants, current and previous were promised a 60 day vacation notice.
- 5 units are currently vacant due to tenants voluntarily securing other housing and moving out on their own accord.
- 2 notices to vacate have been given to us (the landlord) by tenants voluntarily who have secured other housing.
- The remaining 5 units are occupied and are on a month-to-month basis.
- All tenants who have vacated thus far have been given back their full deposit at the time of move out.
- We plan to give the remaining tenants their full deposit back on the date of move out.

We acquired the building in November 2019. Since acquisition:

- We have never raised rent on any tenants and have continued to keep the rent below market in an effort to help tenants acquire enough savings.
- We repaired about a dozen or so issues of health and hazard inherited from the previous landlord. These issues include but are not limited to sliding doors which do not open, broken windows, leaks, mold, lack of fire extinguishers, lack of properly functioning thermostats, roach infestations, etc...
- We allowed flexible lease terms.
- We were very lenient with tenants about paying late, and never collected fees for doing so.

Prior to the buildings being demolished:

- Les Schwab has agreed to let the landlord sell, recycle or repurpose any utilities or appliances. The landlord will also allow tenants to take appliances such as a refrigerator and stove free of charge if it helps them with securing new housing.

In the current state, this building in our opinion does not provide a good opportunity for residential housing. Given the age of the building and systems, rents would need to drastically be increased to justify the level of investment needed in maintaining this building as a residential building. Knowing the potential of a better use, we were able to hold off on increasing rents up with the anticipation of re-development into a better use for this location.

Please let me know if I could be of any further assistance or if I could clarify any of the points above.

Thank you,



Darko Vukovic,
Managing Member VIG Moran LLC
Phone #: +1 650 485 9634
Email: drvukovic86@gmail.com

Dear Mr. Vukovic,

I Donovan weil / Douglas Freitas (printed name) understand the Landlord's intentions to redevelop your property. I also understand the timeline and procedures for vacating the premises:

- The Landlord will provide a 60 day notice to vacate. This letter **is not** a notice to vacate, rather it is just informative.
- I understand that a vacating notice is expected by the end of the year (2022).
- I understand Rent is still due, and all other lease terms apply while I am a Tenant.
- If I am able to secure other housing prior to the notice to vacate, a 30- day move out notice to the Landlord is not required. I will be charged rent on a pro rata basis for the month in which I move out (only charge for days I live in the unit).
- If all of my possessions are removed and the unit is broom clean, I will receive an immediate full refund of my security deposit.
- If it helps me to secure other housing, I am allowed to take the stove and refrigerator that's in my unit at no cost to me.

With my initials, I acknowledge the following:

DFOW I am aware of the proposed redevelopment of the property.

DFOW I have received this notice and have begun to look for other housing arrangements.

DFOW I understand the terms of moving out with regard to receiving my deposit back.

Address 4605 A Moran Ave Cheyenne WY 82009

Printed Name Donovan weil, Douglas Freitas

Signature Donovan weil, Douglas Freitas

Dear Mr. Vukovic,

I Jacob Rodriguez (printed name) understand the Landlord's intentions to redevelop your property. I also understand the timeline and procedures for vacating the premises:

- The Landlord will provide a 60 day notice to vacate. This letter **is not** a notice to vacate, rather it is just informative.
- I understand that a vacating notice is expected by the end of the year (2022).
- I understand Rent is still due, and all other lease terms apply while I am a Tenant.
- If I am able to secure other housing prior to the notice to vacate, a 30- day move out notice to the Landlord is not required. I will be charged rent on a pro rata basis for the month in which I move out (only charge for days I live in the unit).
- If all of my possessions are removed and the unit is broom clean, I will receive an immediate full refund of my security deposit.
- If it helps me to secure other housing, I am allowed to take the stove and refrigerator that's in my unit at no cost to me.

With my initials, I acknowledge the following:

JR I am aware of the proposed redevelopment of the property.

JR I have received this notice and have begun to look for other housing arrangements.

JR I understand the terms of moving out with regard to receiving my deposit back.

Address 4606 C Moran Ave Cheyenne WY 82009

Printed Name Jacob Rodriguez

Signature Jacob Rodriguez

Dear Mr. Vukovic,

I James Paintin Tammy Bocock (printed name) understand the Landlord's intentions to redevelop your property. I also understand the timeline and procedures for vacating the premises:

- The Landlord will provide a 60 day notice to vacate. This letter **is not** a notice to vacate, rather it is just informative.
- I understand that a vacating notice is expected by the end of the year (2022).
- I understand Rent is still due, and all other lease terms apply while I am a Tenant.
- If I am able to secure other housing prior to the notice to vacate, a 30- day move out notice to the Landlord is not required. I will be charged rent on a pro rata basis for the month in which I move out (only charge for days I live in the unit).
- If all of my possessions are removed and the unit is broom clean, I will receive an immediate full refund of my security deposit.
- If it helps me to secure other housing, I am allowed to take the stove and refrigerator that's in my unit at no cost to me.

With my initials, I acknowledge the following:

JM I am aware of the proposed redevelopment of the property.

TB I have received this notice and have begun to look for other housing arrangements.

JM I understand the terms of moving out with regard to receiving my deposit back.

Address 4606 D Moran Ave Cheyenne WY 82009

Printed Name James Paintin Tammy Bocock

Signature [Handwritten Signature] [Handwritten Signature]

Dear Mr. Vukovic,

I Willie Nicholson (printed name) understand the Landlord's intentions to redevelop your property. I also understand the timeline and procedures for vacating the premises:

- The Landlord will provide a 60 day notice to vacate. This letter **is not** a notice to vacate, rather it is just informative.
- I understand that a vacating notice is expected by the end of the year (2022).
- I understand Rent is still due, and all other lease terms apply while I am a Tenant.
- If I am able to secure other housing prior to the notice to vacate, a 30- day move out notice to the Landlord is not required. I will be charged rent on a pro rata basis for the month in which I move out (only charge for days I live in the unit).
- If all of my possessions are removed and the unit is broom clean, I will receive an immediate full refund of my security deposit.
- If it helps me to secure other housing, I am allowed to take the stove and refrigerator that's in my unit at no cost to me.

With my initials, I acknowledge the following:

WN I am aware of the proposed redevelopment of the property.

WPC I have received this notice and have begun to look for other housing arrangements.

WN I understand the terms of moving out with regard to receiving my deposit back.

Address 4607 A Moran Ave Cheyenne WY 82009

Printed Name Willie Nicholson

Signature Willie Nicholson

Dear Mr. Vukovic,

I Rebecca Jones (printed name) understand the Landlord's intentions to redevelop your property. I also understand the timeline and procedures for vacating the premises:

- The Landlord will provide a 60 day notice to vacate. This letter **is not** a notice to vacate, rather it is just informative.
- I understand that a vacating notice is expected by the end of the year (2022).
- I understand Rent is still due, and all other lease terms apply while I am a Tenant.
- If I am able to secure other housing prior to the notice to vacate, a 30- day move out notice to the Landlord is not required. I will be charged rent on a pro rata basis for the month in which I move out (only charge for days I live in the unit).
- If all of my possessions are removed and the unit is broom clean, I will receive an immediate full refund of my security deposit.
- If it helps me to secure other housing, I am allowed to take the stove and refrigerator that's in my unit at no cost to me.

With my initials, I acknowledge the following:

Rej I am aware of the proposed redevelopment of the property.

Rej I have received this notice and have begun to look for other housing arrangements.

Rej I understand the terms of moving out with regard to receiving my deposit back.

Address 4608 D Moran Ave Cheyenne WY 82009

Printed Name Rebecca Jones

Signature Rebecca Jones